

Plaintiffs argue that section 1793.2, subdivision (b), is violated when the manufacturer fails to “fully conform” the entire vehicle to warranty within 30 days of a presentation. It argues that an incomplete or defective repair that is returned to the consumer within 30 days still constitutes a violation.

In *Santana v. FCA US, LLC* (2020) 56 Cal.App.5th 334, the manufacturer repaired the stalling of the bridge operation, but in doing so, introduced a new defect due to the inability of the fuel pump to shut off in the event of an accident. The court affirmed the jury’s finding that the manufacturer failed to conform the car to the applicable express warranties of full functionality, rejecting what it termed “a ‘MacGyver’ half measure that simply swaps defects.” (*Id.* at 345-346.) Here, Plaintiffs presented evidence that after the 24-day repair visit ending on 3/15/24, they retrieved the vehicle but discovered that the oil was “low, like extremely low,” requiring Plaintiffs to “go get an oil change right after.” (Defendant’s compendium of evidence, Exh. 10 at 61:14-62:6.) This testimony creates a triable issue of fact as to whether the vehicle was actually repaired so as to fully “conform” to the applicable warranties when it was returned to the Plaintiffs. It also creates a triable issue as to whether the repair has created a new defect, similar to the “half measure” in *Santana*.

Based on the foregoing, Plaintiffs have raised a triable issue of material fact, and **the court denies summary adjudication of the 2nd cause of action.**

3. Civil Code section 1793.2(a)(3) (Third Cause of Action)

Civil Code section 1793.2, subdivision (a)(3) requires a manufacturer to make available to authorized service and repair facilities “sufficient service literature and replacement parts to effect repairs during the express warranty period.”

Defendants argue that there is no evidence it failed to make available to its authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period in violation of Civil Code section 1793.2, subdivision (a)(3). However, Defendants failed to submit any evidence that it provided sufficient service literature and replacement parts for the repairs at issue. Thus, Defendant failed to meet its initial burden of production to show that an essential element of the claim cannot be established. As Defendant has not met its burden, the burden does not shift to Plaintiffs to produce evidence to reflect a triable issue of material fact. **Accordingly, the court denies summary adjudication as to the 3rd cause of action.**

Summary:

Deny summary adjudication of the 2nd and 3rd causes of action.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600199	CITY OF SAN JACINTO VS JUAN CARLOS D. REDIN AND TONI S. REDIN	MOTION FOR PREJUDGMENT POSSESSION

Tentative Ruling:

This motion is not opposed. Accordingly, the motion is granted in all respects. Moving party to submit an order for the Court's signature. Moving party to give notice of ruling.